TrueNorth Brokerage Group LLC
d/b/a TrueNorth Property Management
Brokerage License CQ1075599 · Broker License BK3589651
7629 Odessa Ct, Brooksville, FL 34613
(352) 995-2355 · alfredo@truenorthpm.co · truenorthpm.co

Independent Contractor Agreement

This Agreement is between TrueNorth Brokerage Group LLC, a Florida licensed real estate brokerage doing business as TrueNorth Property Management and as TrueNorth Brokerage Group, Florida brokerage license CQ1075599 (the "Brokerage"), whose broker is Alfredo Mirt, license BK3589651 (the "Broker"), and the licensee identified below (the "Agent").

Agent name, as licensed _____

Florida license number _____

License type
☐ Sales associate ☐ Broker associate

Effective date _____

Email for notices _____

Mobile phone _____

1. Association and scope

The Brokerage registers the Agent's license and authorizes the Agent to perform real estate services permitted by Chapter 475, Florida Statutes, in the Brokerage's name. The Agent performs those services as an independent contractor, not as an employee. This Agreement does not create a partnership, joint venture, or employment relationship.

The Agent may not perform any act requiring a license on behalf of the Brokerage until the Agent's license is registered to the Brokerage and active with the Department of Business and Professional Regulation. Acting before that registration is active violates s. 475.42(1)(b), Florida Statutes.

2. Independent contractor status and taxes

Federal tax treatment. The parties intend that the Agent be treated as a qualified real estate agent and statutory nonemployee under s. 3508 of the Internal Revenue Code. Accordingly: (a) the Agent is and will remain a licensed real estate licensee; (b) substantially all compensation paid to the Agent for services performed as a real estate agent is directly related to sales or other output, rather than to the number of hours worked; and (c) **the Agent will not be treated as an employee for federal tax purposes** with respect to those services.

Reporting and withholding. The Brokerage will not withhold federal income tax, Social Security, Medicare, or any state tax from compensation. The Brokerage will report compensation on IRS Form 1099-NEC. The Agent is solely responsible for income tax, self-employment tax, and estimated payments, and will keep a current Form W-9 on file.

Workers' compensation. The Agent is a real estate licensee who **agrees in writing to perform for remuneration solely by way of commission**, and is therefore excluded from the definition of employee under s. 440.02(15)(d), Florida Statutes. The Brokerage does not provide workers' compensation coverage for the Agent.

No benefits. The Agent is not eligible for and waives any claim to employee benefits of any kind, including health insurance, retirement contributions, paid leave, overtime, minimum wage, and unemployment compensation.

Control of the work. The Agent sets their own hours, schedule, methods, territory within the Brokerage's service area, and business plan, and pays their own expenses. The Brokerage does not set sales quotas, require floor time, require attendance at meetings, or direct the manner in which the Agent produces business. Supervision by the Broker is limited to compliance with license law, review of transaction files, and handling of funds, which Chapter 475 requires of the Broker and which does not convert this relationship into employment.

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3. The Agent's obligations

The Agent will, at the Agent's own expense:

- Keep the Florida real estate license active and in good standing, and complete all post-licensing and continuing education on time.
- Maintain membership in a Realtor association and the MLS the Agent uses, and keep MLS records showing the Brokerage as the Agent's firm.
- **Carry errors and omissions insurance of at least $500,000 per claim** and deliver a certificate to the Brokerage before the Agent's first transaction and at each renewal. The Brokerage does not provide errors and omissions coverage for the Agent.
- Comply with Chapter 475, Florida Statutes, the rules of the Florida Real Estate Commission, federal and Florida fair housing law, and the Brokerage's written policies as they exist from time to time.
- Include the Brokerage's licensed name in every advertisement as Rule 61J2-10.025, F.A.C., requires, and submit any team or group name for the Broker's written approval before use.
- Deliver all earnest money, deposits, and other funds belonging to another person to the Brokerage or the named escrow agent immediately. **The Agent may never hold, deposit, or commingle such funds.**
- Deliver every executed contract, addendum, and disclosure to the Brokerage within 2 business days of execution, and respond to the Broker's file requests promptly.
- Carry automobile liability insurance meeting Florida's financial responsibility requirements for any vehicle used in the business.
- Not accept compensation for real estate services from anyone other than the Brokerage, and not pay any fee or share any compensation with a person who is not properly licensed.

4. The Brokerage's obligations

The Brokerage will: register the Agent's license and supervise as Chapter 475 requires; maintain escrow accounts and handle trust funds in compliance with s. 475.25(1)(k), Florida Statutes, and Rule 61J2-14, F.A.C.; provide the brokerage email alias, shared drive, templates, signage, and lockboxes covered by the monthly fee; provide the listing marketing package described in Exhibit A for the Agent's listings; make the Broker reasonably available for contract and compliance questions; provide training sessions as scheduled; and disburse compensation as provided in Exhibit A.

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5. Compensation

Compensation is set out in **Exhibit A**, which is part of this Agreement. In summary, the Agent receives 100% of the commission earned on the Agent's transactions, and the Brokerage charges $399 per closed transaction and $29 per month.

Earning and payment. A commission is earned only when the transaction closes and the Brokerage actually receives the funds. The Brokerage disburses the Agent's share within 1 business day of receipt, by direct deposit, with a statement showing the calculation.

Splits and referrals. Co-brokerage splits, referral fees, and team splits agreed in writing before closing are applied before the transaction fee.

Disputes. If a client, cooperating brokerage, or closing agent disputes a commission, the Brokerage may hold the disputed portion until the dispute is resolved, and will keep the Agent informed in writing.

No draws or advances. The Brokerage does not advance commissions and does not guarantee any level of income.

Changes. The Brokerage may amend Exhibit A on 30 days written notice. Transactions under contract when notice is given close on the prior schedule. If the Agent does not accept the change, the Agent may terminate under Section 8 without penalty.

6. Expenses

The Agent pays all costs of the Agent's business, including license and education costs, association and MLS dues, lockbox access, errors and omissions insurance, personal marketing beyond the listing package, vehicle, phone, and any staff or assistant the Agent engages. The Brokerage does not reimburse these costs and does not mark them up.

An assistant or team member engaged by the Agent works for the Agent, not the Brokerage. If that person performs any act requiring a real estate license, they must be licensed and registered with the Brokerage first.

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7. Confidentiality, records, and Brokerage property

Client lists, contact records, transaction files, pricing information, and data in the Brokerage's systems are confidential and remain the property of the Brokerage and its clients during and after this Agreement. The Agent will not copy, export, or use them except to perform services for the Brokerage's clients.

Listings and listing agreements belong to the Brokerage, not to the Agent. Transaction records belong to the Brokerage, which must retain them for at least 5 years under s. 475.5015, Florida Statutes.

The Brokerage's name, logo, and marks remain the Brokerage's property. The Agent's license to use them ends when this Agreement ends, and the Agent will stop using them and remove them from signage, profiles, and marketing within 10 days.

The Agent's own personal contact database, developed by the Agent and not derived from Brokerage leads, files, or the property management book, remains the Agent's.

8. Term and termination

Term. This Agreement begins on the effective date and continues until terminated.

Termination. Either party may terminate at any time, with or without cause, on written notice. Termination is effective on delivery unless the notice states a later date.

Immediate termination. The Brokerage may terminate immediately if the Agent's license lapses or is suspended or revoked, if the Agent's errors and omissions coverage lapses, if the Agent mishandles funds belonging to another, or if the Agent violates fair housing law.

Pending transactions. Transactions under written contract on the termination date close through the Brokerage and are compensated on the schedule in effect at termination, less the transaction fee. Listings remain with the Brokerage; the Brokerage may, in its discretion and at the seller's request, release a listing to the Agent's new brokerage or cancel it.

On termination. The Agent will return Brokerage property, signage, lockboxes, and files; cease use of the Brokerage's name and marks; and cooperate in transferring the license through DBPR. Monthly fees stop the month after written notice. Amounts owed by either party survive termination.

9. Indemnification and limitation of liability

By the Agent. The Agent will indemnify, defend, and hold the Brokerage and the Broker harmless from claims, damages, fines, costs, and reasonable attorney's fees arising out of the Agent's acts or omissions, including license law violations, misrepresentation, mishandling of funds, discrimination, and acts outside the scope of this Agreement, except to the extent caused by the Brokerage's own negligence or willful misconduct.

By the Brokerage. The Brokerage will indemnify, defend, and hold the Agent harmless from claims arising out of the Brokerage's own negligence, willful misconduct, or violation of law.

Deductibles and uncovered claims. The Agent is responsible for the deductible and any amount above policy limits on a claim arising from the Agent's transactions.

Limitation. Except for fraud, willful misconduct, or mishandling of escrow funds, the Brokerage's total liability to the Agent is limited to the fees the Agent paid the Brokerage in the 12 months before the claim. Neither party is liable for lost profits or other indirect damages.

No guarantee. The Brokerage makes no representation about the volume of business, leads, or income the Agent will receive.

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10. Dispute resolution and governing law

Florida law governs this Agreement, and venue for any action is Hernando County, Florida. Before filing suit, the parties will attempt in good faith to resolve the dispute and will mediate with a Florida certified circuit civil mediator, splitting the mediator's fee. Commission disputes between licensees may also be submitted to the local Realtor association's arbitration process where both parties are members. The prevailing party in any action to enforce this Agreement is entitled to reasonable attorney's fees and costs.

11. Notices

Notices must be in writing and are effective when sent to the email addresses in this Agreement, or when delivered by hand or by a national overnight carrier to the addresses on file. Either party may change its address by notice.

12. General

This Agreement and Exhibit A are the entire agreement between the parties about the Agent's association with the Brokerage and replace any prior understanding. Except for Exhibit A, which may be amended as provided in Section 5, this Agreement may be amended only in a writing signed by both parties. The Brokerage's written policies are incorporated by reference and may be updated by the Brokerage; where a policy conflicts with this Agreement, this Agreement controls. If any provision is unenforceable, the rest stays in force. The Agent may not assign this Agreement. Sections 2, 6, 7, 9, 10, and 12 survive termination. This Agreement may be signed in counterparts and delivered electronically; electronic signatures are valid under the federal E-SIGN Act and s. 668.50, Florida Statutes. Nothing in this Agreement waives any right or obligation under Chapter 475, Florida Statutes.

13. Acknowledgment

☐	I have read this Agreement and Exhibit A, and I understand that I am an **independent contractor**, that no taxes will be withheld, and that I will receive a Form 1099-NEC.
☐	I agree to perform **for remuneration solely by way of commission**, and I understand the Brokerage does not carry workers' compensation coverage for me.
☐	I understand the Brokerage does **not** provide errors and omissions insurance, and that I must carry at least $500,000 per claim and file a certificate before my first transaction.
☐	I understand I may not act for the Brokerage until my license is **active with the DBPR** under this Brokerage.

Agent

_____
Signature

_____
Printed name

_____
Florida license number

_____
Date

TrueNorth Brokerage Group LLC d/b/a TrueNorth Property Management

_____
Signature

_____
Alfredo Mirt, Broker-Owner, License BK3589651

_____
Date

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Exhibit A — Compensation schedule

Effective _____ and until amended under Section 5.

Item	Amount	Terms
Commission split	100% to the Agent	Of the commission the Brokerage receives on the Agent's transaction, after any written co-broke, referral, or team split.
Transaction fee	$399	Per closed transaction, each side. Deducted at disbursement.
Monthly fee	$29 per month	Billed on the 1st. Covers the brokerage email alias, shared drive and templates, signage and lockbox use, and broker file review. Not prorated for a partial first month.
Desk fee	$0	None now, and none when a physical office opens.
Franchise or royalty	$0	The Brokerage is independent.
Signage and lockboxes	$0	Brokerage signage and electronic lockboxes provided for the Agent's listings.
Listing marketing package	Included	Professional photography, aerial photos and video, edited listing video, floor plan, printed flyers, and open house support, on listings taken in the Brokerage's name.
Errors and omissions	Agent carries their own	Minimum $500,000 per claim. Certificate due before the first transaction.
Personal transactions	Transaction fee applies	Property the Agent buys, sells, or leases for their own account runs through the Brokerage.

Worked example

A $350,000 sale with the Agent on the listing side at a 2.5% listing fee. The Brokerage receives $8,750. The Agent's share is 100% of that, $8,750, less the $399 transaction fee, for $8,351 disbursed within 1 business day of the Brokerage receiving the funds. Over a year with twelve monthly fees, the Agent's total cost to the Brokerage on that single transaction is $399 plus $240.

Agreed

Agent

_____

Signature and date

Brokerage

_____

Signature and date